

**RESOLUTION SUPPORTING REVISIONS TO AIR QUALITY MANAGEMENT APPROACHES
UNDER THE FEDERAL CLEAN AIR ACT**

WHEREAS, ambient air is a shared resource requiring multi-jurisdictional planning and collaboration for its proper management; and

WHEREAS, the signatory agencies to this Resolution are firmly committed to maintaining and improving air quality, a necessary component of the agencies' mandate to protect public health and the environment; and

WHEREAS, environmental protection agencies share the responsibility of reducing air pollution sufficiently to ensure attainment with national ambient air quality standards (NAAQS) and compliance with hazardous air pollutant emission standards promulgated by the United States Environmental Protection Agency (EPA); and

WHEREAS, States are individually charged with carrying out requirements of the Clean Air Act including development of State Implementation Plans (SIPs) that outline how air pollution will be controlled to meet EPA regulations; and

WHEREAS, substantial progress has been made by EPA and the States in improving air quality through implementation of the Clean Air Act, as amended, and related state statutes; and

WHEREAS, federal statutory, regulatory, and procedural mandates hinder progress toward a fully effective air quality management system through imposition of unnecessarily burdensome, complicated, and costly requirements; and

WHEREAS, while states have authority to regulate industrial sources and limited authority to regulate mobile sources, national standards are traditionally imposed on many sectors by EPA, yet the Clean Air Act requires development of State SIPs incorporating federal emission control requirements for such sectors; and

WHEREAS, authority and responsibility for achieving the NAAQS are not aligned. States are responsible for achieving the NAAQS under the current SIP process, yet the authority to achieve the NAAQS now rests primarily with the federal government (i.e. the ability to regulate federally preempted mobile sources and interstate/international pollutant transport); and

WHEREAS, this failed alignment between authority and responsibility is leading to inefficiencies, delays, and the development of less cost-effective state and local control strategies; and

WHEREAS, the current SIP process cannot efficiently and effectively address the growing relevance of interstate pollutant transport, federally preempted mobile sources, and multi-pollutant considerations; and

WHEREAS, there is a need to transition into a comprehensive multi-pollutant air quality planning process that aligns responsibility for achieving the NAAQS with the authority to achieve the NAAQS and ensures that control strategies are coordinated, prioritized and pursued in the most efficient way possible considering various air quality and climate change goals; and

WHEREAS, SIPs narrowly focus state and local governments on addressing one pollutant at a time, sometimes to the detriment or avoidance of other pollutant concerns; and

WHEREAS, holistic, comprehensive planning is needed that coordinates and prioritizes air quality improvement efforts; and

WHEREAS, the national climate change debate and likely future legislation present unique opportunities to reengineer the air quality management process; and

WHEREAS, the National Research Council, operating under the auspices of the National Academies, evaluated current requirements and future air quality management needs in the United States and provided recommendations supporting regional planning and multi-pollutant strategies to EPA via the Clean Air Act Advisory Committee; and

WHEREAS, federal funding of agencies has been reduced and is critically inadequate; and

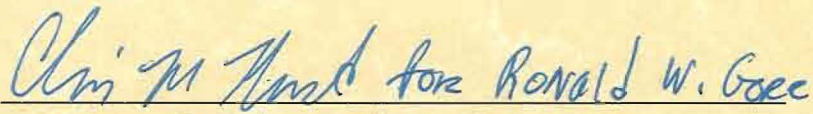
WHEREAS, wise stewardship of limited public funds and agency resources require development of more effective, timely, and efficient air quality management approaches to meet future obligations; and

WHEREAS, changes to the Clean Air Act may be necessary to make significant improvements to the air quality management process.

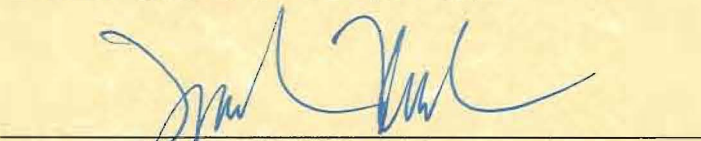
NOW, THEREFORE, BE IT RESOLVED that the undersigned states, through their respective environmental agencies and in the interest of a more efficient, cost-effective, and common sense approach to air quality management in the United States, hereby agree:

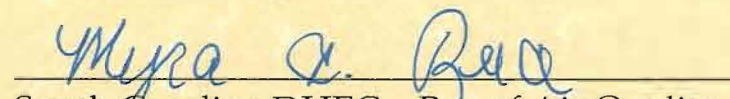
1. To work collaboratively to improve the efficiency and effectiveness of air quality management in the Southeast; and
2. To work collaboratively and, where appropriate, conduct consolidated regional planning that, to the extent practicable, is based on a multi-pollutant approach; and
3. To promote the implementation of flexible, cost-effective solutions to air quality problems; and
4. To continue our proactive work with various stakeholders including the regulated community, environmental groups, and governmental agencies to accomplish through regulatory and voluntary efforts desired improvements to ambient air quality as well as the air quality management process; and
5. To encourage EPA to seek short-term and long-term solutions to streamline the SIP process; and
6. To maintain dialogue and work cooperatively with EPA to monitor progress and share ideas; and
7. To provide recommendations to Congress, as necessary and appropriate, to address critically needed air quality management improvements.

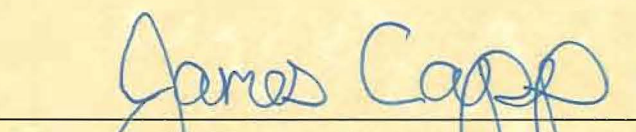
Approved and adopted by the undersigned on September 11, 2009:


Alabama DEM – Air Division

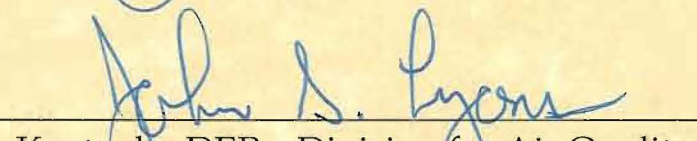

North Carolina DENR – Div of Air Quality


Florida DEP – Div of Air Resource Mgmt


South Carolina DHEC – Bur of Air Quality


Georgia EPD – Air Protection Branch


Tennessee DEC – Air Pollution Control Div


Kentucky DEP – Division for Air Quality


West Virginia DEP – Div of Air Quality


Mississippi DEQ – Air Division